

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



July 26, 2018

Honorable William S. Lebov
Judge of the Superior Court
County of Yolo
1000 Main Street
Woodland, CA 95695

Re: Vochatzer II, Christopher Jon
CDC No.: F24738
Case No.: 05-2373
Date of Sentence: April 13, 2006

Dear Honorable William S. Lebov:

The purpose of this letter is to provide the court with authority to resentence Christopher Jon Vochatzer II pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Vochatzer II was sentenced in 2006, and was convicted of section 245, subdivision (a)(1), Assault With A Deadly Weapon. The trial court sentenced inmate Vochatzer II on April 13, 2006. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to inmate Vochatzer II's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Vochatzer II's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,


SCOTT KERNAN
Secretary

Enclosures:

Abstract of Judgment-Prison Commitment-Determinate
Minute Order
First Amended Information

cc: Honorable Janet Gaard, Yolo County Presiding Judge
Yolo District Attorney
Public Defender

F24738

ABSTRACT OF JUDGMENT - PRISON COMMITMENT - DETERMINATE

[NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-290 ATTACHED]

F24738

CR-290
FILED
 YOLO COUNTY
 SUPERIOR COURT

APR 14 2006

E. Pedroia

☒ SUPERIOR COURT OF CALIFORNIA, COUNTY OF YOLO ☐ MUNICIPAL BRANCH OR JUDICIAL DISTRICT		PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: CHRISTOPHER JON VOCHATZER, II AKA: CII#: A09370535 BOOKING #: 05-370		DOB: 01-30-77 ☐ NOT PRESENT	05-2373 -A -B -C E
COMMITMENT TO STATE PRISON ABSTRACT OF JUDGMENT		☐ AMENDED ABSTRACT			
DATE OF HEARING 04-13-06		DEPT. NO. NINE		JUDGE WILLIAM S. LEBOV, JUDGE ASSIGNED	
CLERK E. PEDROIA		REPORTER K. RUTHERDALE		PROBATION NO. OR PROBATION OFFICER	
COUNSEL FOR PEOPLE J. LINDEN, DDA		COUNSEL FOR DEFENDANT R. SPANGLER, APD		☒ APPTD.	

1. Defendant was convicted of the commission of the following felonies:

☐ Additional counts are listed on attachment
 (number of pages attached)

CNT.	COD	SECTION NO.	CRIME	YEAR CRIM COMMITTED	DATE OF CONVICTION (MO./DATE/YEAR)	CONVICTED BY			TERM (L, M, U)	CONCURRENT	CONSECUTIVE 1/3 VIOLENT	CONSECUTIVE 1/3 NON-VIOLENT	CONSECUTIVE FULL TERM	INCOMPLETE SENTENCE (under 99.04)	654 STAY	PRINCIPAL OR CONSECUTIVE TIME IMPOSED	
						JURY	COURT	PLEA								YRS.	MOS.
A	PC	245(a)(1)	ASSAULT WITH A DEADLY WEAPON	2005	04-13-06			X	U							08	00

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST enhancements stricken under PC 1385.

CNT.	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	TOTAL
3a	186.22(b)(1) PC	10							10 00
3b	12022.7(a)	3							03 00
3c	422.75(b)	4							04 00
3d	12022(b)(1)	1							01 00

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTION OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST enhancements stricken under PC 1385.

ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	ENHANCEMENT	Y/S	TOTAL
667.5(b) PC	1	667.5(b) PC	1					02 00

4. ☒ Defendant was sentenced pursuant to PC 667 (b)-(i) or PC 1170.12 (two-strikes).

5. INCOMPLETED SENTENCE(S) CONSECUTIVE

COUNTY	CASE NUMBER

6. TOTAL TIME ON ATTACHED PAGES:

7. ☐ Additional indeterminate term (see CR-292).

8. TOTAL TIME: 28 00

This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for determinate sentences. Attachments may be used but must be referred to in this document.
 (Continued on reverse)

05-2373

-A

-B

-C

-

9. FINANCIAL OBLIGATIONS (including any applicable penalty assessments):

- a. RESTITUTION FINE of: \$200.00 per PC 1202.4(b) forthwith per PC 2085.5.
 b. RESTITUTION FINE of: \$200.00 per PC 1202.45 suspended unless parole is revoked.
 c. RESTITUTION of: \$ per PC 1202.4(f) to victim(s)*=N ☐ Restitution Fund
 (*List victim name(s) if known and amount breakdown in item 11, below.)
 (1) ☐ Amount to be determined.
 (2) ☐ Interest rate of: ___% (not to exceed 10% per PC 1202.4(f)(3)(G)).
 d. ☐ LAB FEE of: \$___ for counts: ___ per H&SC 11372.5(a).
 e. ☐ DRUG PROGRAM FEE of \$150 per H&SC 11372.7(a).
 f. ☒ FEE of \$20.00 per AB 1759 to be collected by the Dept. of Corrections

10. TESTING

- a. ☐ AIDS pursuant to ☐ PC 1202.1 ☐ other (specify):
 b. ☐ DNA pursuant to ☐ PC 295/296 ☐ other (specify):

11. Other orders (specify):

12. Execution of sentence imposed

- a. ☒ at initial sentencing hearing. d. ☐ at resentencing per recall of commitment.
 b. ☐ at resentencing per decision on appeal. e. ☐ other (specify):
 c. ☐ after revocation of probation.

13. CREDIT FOR TIME SERVED

CASE NUMBER	TOTAL CREDITS	ACTUAL	LOCAL CONDUCT
05-2373 -A	392	341	51 ☒ 4019 ☐ 2933.1
-			☒ 4019 ☐ 2933.1
-			☐ 4019 ☐ 2933.1
-			☐ 4019 ☐ 2933.1

DATE SENTENCE PRONOUNCED:
04-13-06

SERVED TIME IN STATE INSTITUTION:

☐ DMH☒ CDC☐ CRC

14. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.

To be delivered to ☒ the reception center designated by the director of the California Department of Corrections.
☐ other (specify)

CLERK OF THE COURT

I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE

EVELYN PEDROIA, DEPUTY CLERK

DATE

04-14-06

